

FRAMEWORK MEDIA

Terms & Conditions

Website document

Last updated: 08 August 2026

1. Introduction

These Terms & Conditions ("**Terms**") govern the relationship between Framework Media ("**we**", "**us**", "**our**") and any individual or business ("**Client**", "**you**") that engages our services. By booking a service, signing a proposal, or making payment, you agree to be bound by these Terms, together with any signed Client Service Agreement or Retainer Agreement.

2. Definitions

- "**Productised Services**" means fixed-scope, fixed-price services listed on our website (e.g. Growth Strategy, Content Audit, Scriptwriting, Editing).
- "**Retainer Services**" means ongoing engagements under the Content Department or Growth Partner offering, governed by a separate Retainer Agreement.
- "**Deliverables**" means the final files, documents, or assets produced for the Client under an agreed scope.
- "**Client Materials**" means any content, footage, brand assets, or information provided by the Client.

3. Services

Productised services have fixed pricing, defined scope, and defined deliverables and timelines, as described on our website or in a proposal at the time of purchase. **Retainer services** are customised to the Client's needs and require a discovery call, proposal, signed Retainer Agreement, and payment before work begins.

4. Pricing and Payment

Prices are as quoted on our website, in a proposal, or in an invoice at the time of engagement. Unless otherwise agreed in writing:

- Payment is required via Paystack or bank transfer before work commences, or according to the payment schedule set out in your invoice or Client Service Agreement.
- Invoices are payable within 7 days of issue unless a different date is specified.
- Bank transfer proof of payment should be sent to hello@frameworkmedia.co.za to confirm receipt.
- Prices exclude VAT unless stated otherwise, and VAT will be added where applicable.
- Overdue invoices may attract a late payment administration fee and may result in work being paused until the account is settled.
- Framework Media reserves the right to revise pricing for future engagements at any time; pricing already agreed in a signed proposal or invoice will be honoured for that engagement.

5. Commencement of Work

Work begins once payment (or the agreed deposit) has been received and, where applicable, once the Client has completed the relevant onboarding form and supplied required materials.

6. Client Responsibilities

To deliver services on time, we rely on the Client to:

- Provide accurate information via onboarding forms
- Supply requested brand assets, footage, or materials by the agreed date
- Respond to requests for feedback or approval in a timely manner
- Ensure they have the right to use and share any materials provided to us
- Ensure any third-party content supplied to Framework Media (music, stock footage, images, quotes) is properly licensed for the intended use
- Designate a single point of contact for approvals, where the Client is a team or business, to avoid conflicting feedback

Delays caused by the Client may extend delivery timelines and do not constitute a breach by Framework Media.

7. Intellectual Property

Ownership of final deliverables. Once paid in full, final deliverables created specifically for the Client (e.g. final edited videos, final scripts, final designs, final strategy documents) become the property of the Client, for use in their business.

Framework Media's pre-existing IP. Framework Media retains ownership of its own pre-existing tools, templates, frameworks, methodologies, and internal processes used to deliver services. These are not transferred to the Client and may continue to be used for other clients.

Client-provided materials. The Client retains ownership of any materials they provide to us (footage, logos, photos, written content), and grants Framework Media a licence to use these materials solely for the purpose of delivering the agreed service.

Portfolio usage. Unless the Client opts out in writing, Framework Media may reference completed, publicly-available work (e.g. published social media content) in its portfolio, case studies, and marketing materials. Use of testimonials, results, or non-public materials is governed separately by our Testimonial & Case Study Permission agreement.

8. Confidentiality

Both parties agree to keep confidential any non-public business information shared during the engagement (such as strategy, financials, or unreleased content) and not to disclose it to third parties, except as required by law or with the other party's written consent.

9. Revisions and Approvals

Each service includes an agreed number of revision rounds, as set out on our website, in your proposal, or in your onboarding form. Additional revisions beyond this allowance may incur an additional fee. Deliverables are considered approved if no feedback is received within 7 Days of delivery, unless otherwise agreed.

10. Deadlines

Delivery timelines are estimates based on timely Client cooperation. Framework Media is not responsible for delays caused by late feedback, missing materials, or circumstances outside our reasonable control.

11. Third-Party Platforms

Our services may involve or reference third-party platforms (e.g. Instagram, TikTok, YouTube, scheduling and payment tools). Framework Media has no control over these platforms and is not responsible for changes to their algorithms, policies, features, or availability.

12. Content Performance Disclaimer

Framework Media provides professional strategy, content, and creative services. **We do not guarantee specific outcomes**, including but not limited to follower growth, views, engagement, leads, or revenue. Results depend on multiple factors outside our control, including platform algorithms, market conditions, Client execution, and audience behaviour. Any figures, projections, or examples shared are illustrative, not guarantees.

13. Cancellation and Refunds

Cancellations and refunds are governed by our Refund & Cancellation Policy, which forms part of these Terms.

14. Termination

Either party may terminate an engagement for material breach (such as non-payment or failure to provide necessary cooperation) that is not remedied within 7 days of written notice. Termination does not waive any fees owed for work already completed.

15. Limitation of Liability

To the maximum extent permitted by law, Framework Media's total liability for any claim arising from our services is limited to the amount paid by the Client for the specific service giving rise to the claim. Framework Media is not liable for indirect, incidental, or consequential losses, including loss of profit, revenue, or business opportunity.

16. Indemnity

The Client agrees to indemnify Framework Media against any claims, losses, or damages arising from materials the Client provides to us, or from the Client's use of deliverables in a way that breaches these Terms or applicable law.

17. Independent Contractor Relationship

Framework Media provides services as an independent contractor. Nothing in these Terms creates a partnership, joint venture, employment relationship, or agency between Framework Media and the Client. Neither party has authority to bind the other to any third party.

18. Force Majeure

Neither party will be liable for any failure or delay in performing its obligations under these Terms where that failure or delay results from circumstances beyond its reasonable control, including but not limited to load-shedding and power outages, internet or network outages, illness, natural disasters, government action, or third-party platform outages. The affected party will notify the other as soon as reasonably possible and both parties will work in good faith to agree revised timelines.

19. Assignment

The Client may not assign, transfer, or subcontract its rights or obligations under these Terms without Framework Media's prior written consent. Framework Media may assign these Terms in connection with a merger, acquisition, or sale of its business, provided the Client's rights under these Terms are not materially affected.

20. Non-Solicitation

For the duration of an engagement and for 12 months thereafter, the Client agrees not to directly solicit, hire, or engage any Framework Media contractor or team member who was involved in delivering services to the Client, without Framework Media's prior written consent.

21. Severability

If any provision of these Terms is found by a court or tribunal of competent jurisdiction to be invalid, illegal, or unenforceable, that provision will be severed, and the remaining provisions will continue in full force and effect.

22. Waiver

No failure or delay by either party in exercising any right under these Terms will operate as a waiver of that right, nor will any single or partial exercise of a right preclude any other or further exercise of that right.

23. Notices

Formal notices under these Terms must be given in writing and sent to the email address or physical address provided by each party. Notices are deemed received on the business day after they are sent, unless proven otherwise.

24. Electronic Communications and Signatures

The Client agrees that agreements, proposals, and approvals exchanged by email, WhatsApp, or e-signature platforms carry the same weight as physical signatures, and that Framework Media may rely on written approvals received through these channels as authorisation to proceed with work.

25. Survival

Provisions relating to intellectual property, confidentiality, limitation of liability, indemnity, and dispute resolution survive the termination or completion of the engagement.

26. Entire Agreement

These Terms, together with the applicable Refund & Cancellation Policy, Privacy Policy, and any signed Client Service Agreement or Retainer Agreement, constitute the entire agreement between Framework Media and the Client with respect to the services, and supersede any prior discussions, proposals, or understandings, whether written or oral.

27. Dispute Resolution

If a dispute arises, both parties agree to first attempt to resolve it in good faith through direct discussion between the relevant representatives. If unresolved within 30 days, either party may refer the matter to mediation with a mutually agreed mediator before pursuing formal legal action.

28. Governing Law

These Terms are governed by the laws of the Republic of South Africa, and the parties submit to the non-exclusive jurisdiction of the South African courts.

29. Changes to These Terms

We may update these Terms from time to time to reflect changes in our services, business practices, or the law. Where changes are material, we will take reasonable steps to notify active clients. Continued use of our services after changes take effect constitutes acceptance of the updated Terms.

30. Contact

Framework Media

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